

- Page 8, Section 7 – documents are not viewable on the court website so “or the Court’s website.” should be deleted.

Following the changes noted above, the Class Notice is approved for mailing in the manner described in the Settlement Agreement. The deadlines listed in the proposed Order are approved with the exception of the deadline for class members to postmark requests for exclusions, written objections, and workweek/pay period challenges which shall be 60 days instead of the proposed 45 days.

The Motion for Preliminary Approval is **GRANTED** as outlined above. Based on the timeline, it appears that a Final Approval Hearing on **Monday, November 23 2026 at 8:30 a.m. in Department 63** would provide sufficient time. Absent a request for a different date, the Court will calendar the Final Approval Hearing as noted. Plaintiff submitted a proposed Order that will be modified to reflect the Court’s ruling.

HAM, ET AL. VS. FCA US, LLC, ET AL.

CASE NUMBER: 24CV-0206529

Tentative Ruling on Motion for Summary Judgment or Adjudication: Defendant FCA US, LLC moves for summary judgment, or in the alternative, summary adjudication. On January 26, 2026, Plaintiffs Taryn and Ryan Ham sought a continuance based on the need for additional discovery, which was granted. The parties selected June 15, 2026, as the new hearing date based on a deposition that was to occur on April 27, 2026. On January 26, 2026, the Court included in its tentative ruling that the Court expected that an Amended Opposition and Amended Reply would be filed. Neither have been filed. **An appearance by both parties is necessary on today’s calendar to discuss the status of the motion.**

JPMORGAN CHASE BANK, N.A. VS. RENSHAW

CASE NUMBER: 25CVG-02325

Tentative Ruling on Motion to Vacate Dismissal and Enter Judgment Under Terms of Stipulated Settlement: Plaintiff JPMorgan Chase Bank, N.A. seeks to vacate the dismissal entered on January 13, 2026 and enforce the Stipulation Agreement filed on January 5, 2026. Despite being properly noticed, Defendant Derek Renshaw did not file an Opposition.

Request for Judicial Notice. Plaintiff requests the Court take judicial notice of the Stipulation Agreement filed in this matter on January 5, 2026. The request is granted pursuant to Evid. Code §§ 452(d) and 453.

Merits. CCP § 664.6 provides the Court with authority, upon motion, to enter judgment pursuant to the terms of a settlement agreement entered into in writing. If requested by the parties, the Court also retains jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement. *Id.*

The Stipulation Agreement filed with the Court on January 5, 2026 was executed by both parties. The terms of the agreement are straightforward. The parties stipulated to a judgment of \$5,695.43 which is the principal amount. No costs were part of the agreement. The agreement calls for a payment of \$470.43 on or before December 3, 2025, followed by minimum monthly payments of \$475.00 on or before the fifteenth stating January 15, 2026. The parties also agreed that following the dismissal, Plaintiff may reopen the case to enter judgment in the event of Defendant’s failure to comply with the terms of payment described in the agreement.

The declaration of attorney Anthony DiPiero establishes that Defendant has paid a total of \$1,420.43, which appears to be the payments due in December, January, and February. Defendant has not made a payment since February 15, 2026. Plaintiff has sufficiently shown that Defendant breached the terms of the agreement by failing to make payments as owed. Plaintiff requests entry of judgment in the amount of \$4,275.00 which consists of the remaining principal.

The Motion is **GRANTED**. The dismissal is set aside and Judgment for the Plaintiff will be entered in the amount of \$4,275.00. Plaintiff provided a proposed Order and proposed Judgment, both of which will be modified to reflect the Court's ruling.

UMPQUA BANK VS. SABET, ET AL.

CASE NUMBER: 24CV-0205194

Tentative Ruling on Motion for Summary Adjudication: Plaintiff Umpqua Bank moves for summary adjudication on the First, Third, Fourth, and Sixth Causes of Action against Defendants Farzad Sabet, an individual, Marikit Del Rosario-Sabet, an individual, and Farzad Sabet and Marikit Del Rosario-Sabet, Trustees of the Sabet 2012 Trust (Sabet Defendants) as alleged in the Complaint filed June 3, 2024. The Sabet Defendants oppose the motion. All other remaining named Defendants have either been dismissed or had default entered.

Evidentiary Objections. Plaintiff makes several objections to the declaration executed by Mr. and Mrs. Sabet. The Court rules as follows:

1. Overruled
2. Overruled
3. Overruled
4. Overruled
5. Sustained as hearsay and lack of personal knowledge
6. Overruled
7. Overruled
8. Overruled
9. Sustained as hearsay and lack of personal knowledge
10. Overruled
11. Overruled
12. Overruled
13. Overruled

Merits. A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. CCP § 437c(c).

(1) A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.

(2) A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. A party shall not move for summary judgment based on issues asserted in a prior motion for summary adjudication and denied by the court unless that party establishes, to the satisfaction of the court, newly discovered facts or circumstances or a change of law supporting the issues reasserted in the summary judgment motion.

CCP § 437c(f)

A plaintiff has met his burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of one or more material facts exists